4038.

# Executive Order

AN EXECUTIVE ORDER TRANSFERRING A PORTION OF THE ARMY SUPPLY BASE, AT NORFOLK, VIRGINIA, FROM THE CONTROL OF THE WAR DEPARTMENT TO THE CONTROL OF THE UNITED STATES SHIPPING BOARD.

WHEREAS the property described below comes within the terms of Section 17 of an Act of Congress, approved June 5, 1920 (41 Stat. 994), entitled "An Act to provide for the promotion and maintenance of the American Merchant Marine, to repeal certain emergency legislation and provide for the disposition, regulation, and use of property acquired thereunder, and for other purposes", known as the Merchant Marine Act, 1920; and, as I deem the transfer thereof, as below provided, to be for the best interests of the United States;

NOW THEN, by virtue of the power and authority vested in me by Section 17 of the above described Act, it is ordered that the following property be transferred from the War Department to the United States Shipping Board, viz:

> The possession and control of the property owned by the United States in or near the City of Norfolk, Virginia, and known as the Quartermaster Intermediate Depot, U. S. A., as shown on a map on file in the War Department, Quartermaster Corps, and entitled "War Department, Quartermaster Corps, Construction Service,—Army Supply Base, Norfolk, Virginia—Boundary Survey", dated March 1, 1923, and marked: "Plan No. 6238–236"; excepting, however, from the property shown on the plan mentioned, that area east of Maryland Avenue, and north of the railroad tracks, marked "Area—273.57 acres".

The property thus transferred is the area shown on the above-mentioned map as marked "Area 561.57 acres", hereinafter called Tract No. 1; and also the railroad right-of-way connecting this property with the Virginian Railway right-of-way, marked "Area 78.06 acres", hereinafter called Tract No. 2; including all improvements on both tracts, consisting of docks, piers, warehouses, wharves and terminal equipment and facilities, or parts thereof, including all leasehold easements, rights-of-way, riparian rights and other rights, estates or interests therein, or pertaining thereto, owned by the United States.

Provided, however, that the property hereby transferred is subject to the reservations set forth in Exhibit "A" hereto annexed, all of which reservations, however, expire and become null and void not longer than five years from the date of this order, with the exception of the reservation pertaining to lands reserved for the storage of German War Relics, the removal of which cannot be effected until funds for such purpose become available through appropriate legislation.

There are also hereby transferred from the War Department to the United States Shipping Board, the possession, control and use of all equipment and supplies as shown by an inventory to be filed in the office of The Quartermaster General of the Army on the day and date the transfer herein provided for shall become effective, and entitled "Inventory of Equipment and Supplies, at the Norfolk Quartermaster Intermediate Depot (as distinguished from real estate, buildings and other improvements and fixtures attached thereto), transferred to the United States Shipping Board by Executive Order".

Provided, however, that there are hereby reserved to the War Department, the following rights, privileges and easements in the property thus transferred:

> (1) A right-of-way for all purposes, by rail, by road or by sidewalk, over Tract No. 2, referred to above, for the purpose of ingress and egress, to and from adjoining property remaining under the control of the War Department, is hereby reserved to that Department. The exercise of this privilege shall be as may be agreed upon; or, in the absence of agreement, then as hereafter directed, by Executive Order.
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> (2) The right to enter in and upon the tracts hereby transferred is hereby reserved to the War Department for the purpose of installing and maintaining any lighting, water or sewerage system the War Department may reasonably require in its use of the property it retains.

AND IT IS HEREBY FURTHER PROVIDED:

> (a) This transfer is subject to the rights of any lessees of the property hereby transferred, under leases heretofore duly entered into by the War Department, provided any and all such leases are subject to cancellation, at the instance of the United States, on notice not exceeding sixty days. If the

terms of any such lease provide such notice shall be given by the War Department, it shall be the duty of the War Department to serve such notice, at the request of the United States Shipping Board. Originals, or duly authenticated copies of any such lease or leases shall be filed with the Secretary of the United States Shipping Board within twenty days of the date of this order.

(b) Should any part of the electric power transmission line or the water and sewer systems, located on the property hereby transferred, jointly serve the United States Shipping Board and adjacent property retained in the possession and control of the War Department, such facilities shall be maintained and operated by the United States Shipping Board, and compensation for such services shall be paid by the War Department to the United States Shipping Board under an agreement between the Secretary of War and the United States Shipping Board, or as may be hereafter ordered.

The transfer hereby ordered shall be made effective on the first day of September, 1924, at noon; and until that time the possession, control and protection of the property shall remain with the War Department.

All Executive Orders heretofore made are hereby amended and modified so far as may be necessary to conform with the provisions of this order.

**CALVIN COOLIDGE**

THE WHITE HOUSE,
*June 27, 1924.*

[No. 4038.]

# EXHIBIT "A"

## REAL ESTATE RESERVATIONS

(1) It is understood that any commercial telegraph or telephone equipment or material comprising the present telegraph and telephone systems at the Norfolk Quartermaster Intermediate Depot, located upon land to be transferred, and not owned by the Government, are not included in this transfer.

(2) The War Department reserves from immediate delivery the following land and improvements, for a period of five (5) years:

*5.79 acres of land*, more or less, located on the west tract of the Base proper. (More accurately defined on "Map No. 6238–236, dated March 1, 1923, and revised May 1, 1923, entitled—'ARMY SUPPLY BASE, NORFOLK, VIRGINIA, BOUNDARY SURVEY'", filed in the Office of The Quartermaster General of the Army);

*Warehouse Building No. 10*, with installed fixtures, fencing, trackage, etc.

This property will be used by the War Department in connection with storage of material pertaining to the Coast Defenses of Chesapeake Bay, and the War Department will be responsible for all maintenance and repairs to the warehouse, tracks and other facilities thereon during the period of occupancy and usage by the War Department, except that, in the case of switches, the War Department will make only such repairs as are directly caused by the negligence of employees or agents of the War Department, or of employees of such agents, and will not at any time be responsible for the filling, trimming or lighting of lamps located at these switches, etc.

(3) The War Department will reserve the right to utilize all natural and artificial drainage systems, sewers, water mains and electric lines, now in place for the purpose of serving such contiguous government-owned lands and improvements as are not included in the transfer, providing that in the event the War Department disposes of these lands the expense of disconnecting the aforesaid systems will be borne by the Shipping Board.

(4) The War Department will reserve, for a period of 90 days from date of transfer:

(a) Officers' and Warrant Officers' Quarters; Bldg. #8,
(b) Tank Houses 29 and 30, and outhouses connected therewith, Nos. 99, 124, 137, 140 and 141,
(c) 1,220 sq. ft. Section C, Warehouse No. 4.

(5) In connection with the land and warehouse reserved by Par. 2 above, the War Department will authorize the Shipping Board to use a right-of-way for maintenance of that part of the main feeder electric pole line which passes through the land and warehouse so reserved.

(6) The War Department will retain possession of two open storage spaces 67 x 300 ft., and 50 x 106 ft. respectively, located in the western part of the lands transferred (as shown by map), for storage of German War Relics, until such time as their removal can be accomplished.

(7) The War Department will reserve possession for a period not exceeding one hundred twenty (120) days, of Sections B, C, and D, of Warehouse No. 4; and part of the Shop Section in Warehouse No. 11, in order to give time to remove property therein stored, and which property is not hereby transferred.

(8) The War Department will retain the right of ingress and egress to any necessary portion of the property transferred, for the purpose of properly utilizing the property reserved to the War Department.

GOVERNMENT PRINTING OFFICE